

22NWCV00183 22NWCV00183

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Background

This is a wrongful termination action. On March 15, 2022, Plaintiff Estela Espinosa ("Plaintiff") filed this action against Defendants Feniks Funding Incorporated, Feniks Funding, Inc., Ricardo Talamantes, Steven Lopez, and Does 1 to 100. The Complaint alleges that Plaintiff was a Senior Loan Processor working for Feniks Funding Incorporated and Feniks Funding, Inc. (hereinafter, "Feniks Defendants") beginning on September 15, 2020, until Plaintiff was wrongfully terminated on February 26, 2021. Defendant Talamantes was the owner of Feniks Defendants and Plaintiff's supervisor. The Complaint alleges that, during her employment, Plaintiff suffered from 1) disability discrimination and 2) retaliation after she complained that the company was violating the Real Estate Settlement Procedures Act. The Complaint allege the following causes of action:

1.

Wrongful Termination in Violation of Public Policy;

2.

Retaliation (Gov. Code§ 12940(h));

3.

Employment Discrimination Based on Disability
(Gov. Code § 12940(a));

4.

Hostile Work Environment and Harassment in the Workplace;

5.

Intentional Infliction of Emotional Distress;

6.

Failure to Accommodate Disability (Gov. Code §§
12940(m) and 12926(p);

7.

Failure to Engage in the Interactive Process
(Gov. Code § 12940(n));

8.

Violation of Labor Code § 1102.5(b);

9.

Violation of Labor Code § 1102.5(c);

10.

Violation of Labor Code § 1102.5(d);

11.

Breach of the Implied Covenant of Good Faith and
Fair Dealing;

12.

Negligent Supervision and Retention

13.

Failure to Pay Wages in a Timely Manner (Labor
Code § 204);

14.

Failure to Pay Earned Wage (Labor Code §§ 204,
206 and 210)

15.

Failure to Pay Meal Period Compensation (Labor
Code §§ 226.7 and 512);

16.

Failure to Pay Rest Period Compensation (Labor Code §§ 226.7; IWC Wage Order No. 4-2001);

17.

Waiting Time Penalties (Cal. Labor Code §§ 201, 202 and 203); and

18.

Unfair Business Practices (Bus. & Prof Code § 17200).

On March 6, 2026, counsel for Feniks Defendants and Defendant Talamantes was relieved as counsel. (3/6/25 Minute Order.) Defendants remain self-represented.

On March 20, 2026, Defendant Steve Lopez was dismissed without prejudice.

Plaintiff now moves for summary judgment, or in the alternative, summary adjudication as to the first, second, third, fourth, fifth, sixth, seventh, eighth, ninth, tenth, eleventh, and eighteenth causes of action as to Defendant Talamantes.

The Court notes that the Notice of Motion does not include the fourth cause of action—however, the memorandum and point of authorities and separate statement include the fourth cause of action.

The Court further notes that the Notice of Motion indicates that the twelfth to seventeenth causes of action “will be dismissed.” However, no request for dismissal have been filed as to these causes of action. The Court clarifies that the Motion may only seek summary adjudication, not summary judgment.

No opposition has been filed as of August 3, 2026.

Request for Judicial Notice

The Court grants Plaintiff's Request for Judicial Notice of the Court's March 5 2025 order granting Plaintiff's Motion to have Requests for Admission, Set Two, Deemed Admitted as to Ricardo Talamantes, with respect to RFAs 21-56 only (Exhibit A).

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, internal citations omitted.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

In moving for summary judgment, a plaintiff has met its "burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc., § 437c, subd. (p)(1).)

Once a moving party has satisfied the initial burden of proof, the burden "shifts to the opposing party to show, by responsive separate statement and admissible evidence, that triable issues of fact exist." (Ostayan v. Serrano Reconveyance Co. (2000) 77 Cal.App.4th 1411, 1418, disapproved on other grounds by Black Sky Cap., LLC v. Cobb (2019) 7 Cal.5th 156, 165.) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Discussion

In support of the Motion, Plaintiff primarily relies on Requests for Admissions deemed admitted by the Court on March 5, 2025. (Nigro Decl., ¶¶ 3-4, Exhs. B-C; RJN Exh. A.) Plaintiff's Separate Statement lists twenty (20) undisputed material facts based on these admissions ("UMF Nos. 1 to 20"). The Separate Statement first sets forth UMF Nos. 1 to 20 under a section entitled "General Background Facts." The Separate Statement then sets forth sections based on each cause of action, and subsections labeled by issue numbers. Under almost every issue subsection, Plaintiff sets forth the following: "Plaintiff incorporates by reference Undisputed Material Facts and the Supporting Evidence pertaining to Undisputed Material Facts, Nos. 1 -20 as though set forth fully herein."

The only other evidence Plaintiff relies upon is a Right to Sue letter issued by the Department of Fair Employment and Housing on March 22, 2021. (Nigro Decl., ¶ 2, Exh. A.)

In the memorandum of points and authorities, Plaintiff essentially states the relevant legal standard for each cause of action and cites to UMF Nos. 1 to 20. For example, as to the third cause of action, Plaintiff states the legal standard, followed by a statement that "Plaintiff established all of the elements by virtue of the deemed admitted Requests for Admission (UF 1 - 20)." (Mot., 11-12.) The same formula is followed by the discussion on the fourth cause of action.

As to the fifth, sixth, seventh, eighth, ninth, tenth, eleventh, and eighteenth causes of action, Plaintiff states in the conclusory manner that each element of the cause of action is met in this case without citing to any specific undisputed material fact.

The remainder of Plaintiff's memorandum states that Plaintiff is entitled to non-\$2,000,000 in economic damages, \$1,500,000.00 in special damages, and \$100,000.00 in restoration and restitution damages by virtue of the admissions, citing to UMF Nos. 17-19.

No opposition has been filed.

The Court initially finds the

memorandum of points and authorities fails to specifically explain how a particular undisputed fact supports each element of a cause of action or admits Defendant Talamantes's liability as to the entire cause of action. Rather, Plaintiff cites to all twenty undisputed facts or cites to no facts.

The Court acknowledges that a moving party is not required to repeat specific citations to the record in its memorandum that are properly noted in the party's separate statement. (See *Basich v. Allstate Ins. Co.* (2001) 87 Cal.App.4th 1112, 1118 [finding that the moving party need not restate specific citations in the memorandum where the moving party "submitted a comprehensive Statement of Undisputed Material Facts, which separately identified the [claim] and each supporting material fact claimed to be without dispute with respect to that claim"].)

The Court finds that Plaintiff's Motion is procedurally deficient based on the inadequate separate statement.

A motion for summary judgment "shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion." (Code Civ. Proc., § 437c, subd. (b)(1).) "The Separate Statement of Undisputed Material Facts in support of a motion must separately identify...[e]ach supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (Cal. Rules of Court, rule 3.1350, (d)(1)(B), emphasis added.)

"The separate statement is not merely a technical requirement, it is an indispensable part of the summary judgment or adjudication process. 'Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for ... summary judgment to determine quickly and efficiently whether material facts are disputed.' [Citation.]" (*Whitehead v. Habig* (2008) 163 Cal.App.4th 896, 902.)

Here, the Separate Statement

fails to specifically identify the specific undisputed facts that support each cause of action or underlying issue. Each cause of action or underlying issue merely cites to all twenty (20) undisputed facts. It is not the Court's job to determine which facts support which cause of action or underlying issue. That is the purpose of a separate statement.

In effect, Plaintiff's Motion

puts the burden on the Court to identify which undisputed facts support which cause of action, element, or issue. This is improper. "A motion for summary judgment or summary adjudication will be defective if the moving party fails to (1) accurately identify the facts that are material to the legal theory upon which the motion is based; (2) actually include those material facts in the separate statement; and (3) reference evidence establishing, either directly or by inference, each material fact the moving party claims is undisputed." (Pierson v. Helmerich & Payne Internat. Drilling Co. (2016) 4 Cal.App.5th 608, 617, emphasis added.)

Without a proper separate

statement, the Court is unable to determine whether Plaintiff "has proved each element of the cause of action entitling [Plaintiff] to judgment on the cause of action." (Code Civ. Proc., § 437c, subd. (p)(1).)

Accordingly, Plaintiff's Motion

for Summary Judgment, or in the alternative, for Summary Adjudication is denied without prejudice.